



Placement and Residential Licensing Unit

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.682.8590 F: 501.683.6060 TDD: 501.682.1550

Notice of Serious Incident

Case Number: 021001

Date of Incident: 4/27/2024

Date Received: 4/30/2024

Facility Name: Perimeter Behavioral of Forrest City

Facility Number: 142

Incident Type: Dual

Report Description: [REDACTED]

[REDACTED] Please see information below: On Saturday, April 27, 2024, 6:30 PM, [REDACTED]

[REDACTED] wrote: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] The call was made because resident alleged that during lunch a staff member squeezed him from behind resulting in marks across his chest. Internal investigation of the incident has taken place [REDACTED]. The staff involved has been suspended pending investigation.

Interim Action Narrative: Staff member was placed on suspension pending investigation.

Maltreatment Narrative: AV is 13 yo [REDACTED]. PRFC is Mother [REDACTED]. AO is staff member at Perimeter Behavioral in Forrest City. [REDACTED] stated that on 4/27 he was in the dining room and [REDACTED] came up to him and squeezed him hard from behind like a bear hug until his face turned red. [REDACTED] did not mention if his breathing was affected. [REDACTED] said [REDACTED] did this because [REDACTED] wouldn't sit down. [REDACTED] has several areas of petechiae on his chest due to this and starting to form bruises. It is unknown how long [REDACTED]'s stay at Perimeter is, but he does not have a discharge date as of now.

Licensing Narrative: Facility reported computer issues on 4/29/2024. Serious Occurrence Reporting Form emailed to Licensing. 5/2/2024, Program Coordinator entered incident into ELS. Program Coordinator checked CHRIS for name of investigator. 5/3/2024, Program Coordinator contacted investigator for permission to contact the facility. Program Coordinator requested for camera footage to be saved of the incident. 5/6/2024, Program Coordinator followed up with investigator for permission to contact the facility. Licensing received permission to contact the facility. 5/7/2024- Program Manager and Licensing Specialist visited the facility reviewed camera footage, nursing notes, and witness statements. The facility was cited for 907.2, 905.10, 905.4.g, and 109.1.g. Staff was terminated from the facility and the witnessing staff will be retrained.



Division of Child Care & Early Childhood Education

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521 Visit Compliance Report

Licensee: Perimeter Behavioral of Forrest City

Facility Number: 142

Licensee Address: 603 KITTLE ROAD
FORREST CITY AR 72335

Licensing Specialist: Eleanor White

Person In Charge: Immanuel Morris

Record Visit Date: 5/7/2024

Home Visit Date: 5/7/2024

Purpose of Visit: Complaint Visit

Regulations Out of Compliance:

Regulation Number: 900.905.4.g

Regulation Description: The following actions shall not be used, including as discipline:

Finding Description: The staff used a form of hug containment as a form of behavior management then proceeded to squeeze the resident across the chest to gain his compliance. This resulted in the resident sustaining marks across his chest that were visible by nursing staff approximately 3 hours later.

Action Due Date: 2024-05-10

Action Due Description: The facility has terminated the employment of the staff member.

Comply Date:

Sub-Regulation Level 1 Description: Physical injury or threat of bodily harm;

Action Due Description: The facility has terminated the employment of the staff member.

Regulation Number: 900.905.10

Regulation Description: Physical restraint shall be initiated only by staff trained by a certified instructor in a nationally recognized curriculum, and only to prevent injury to the child, other people or property, and shall not be initiated solely as a form of discipline. The agency shall maintain documentation that staff is deemed competent in physical restraint.

Finding Description: The staff initiated a restraint on the resident when he was not a harm to himself, others, or property. The staff picked up the child from the lunchroom and physically carried him back to the resident's dorm when he refused to follow instructions.

Action Due Date: 2024-05-10

Action Due Description: Staff was terminated from employment with the facility.

Comply Date:

Action Due Description: Staff was terminated from employment with the facility.

Regulation Number: 900.907.2

Regulation Description: Child caring staff shall be responsible for providing the level of supervision, care, and treatment necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards and risks.

Finding Description: Staff [REDACTED] did not provide the level of supervision and care necessary to ensure the safety and well-being of the resident when she did not intervene, assist, or call for nursing during the incident in the lunchroom.

Action Due Date: 2024-05-09

Action Due Description: The facility will retrain the staff on calling for staff assistance as well as calling for a nurse before an escort or ESI. The staff will also receive counseling on engaging in processing with the resident and support the staff members.

Comply Date:

Action Due Description: The facility will retrain the staff on calling for staff assistance as well as calling for a nurse before an escort or ESI. The staff will also receive counseling on engaging in processing with the resident and support the staff members.

Regulation Number: 100.109.1.g

Regulation Description: Unprofessional conduct in the practice of child welfare activities shall include, but not limited to the following:

Finding Description: The staff engaged in behavior that could be viewed as dangerous to the resident resulting in marks across the resident's chest. The staff reported that he squeezed the resident around his chest to prevent him from getting up from a lunchroom table.

Action Due Date: 2024-05-10

Action Due Description: The facility has terminated the employment of the staff member.

Comply Date:

Sub-Regulation Level 1 Description: Engaging in behavior that could be viewed as sexual, dangerous, exploitative, or physically harmful to children.

Action Due Description: The facility has terminated the employment of the staff member.

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Narrative:

Program Manager and Licensing Specialist reviewed the camera footage for case 021001. The facility provided the licensing unit with copies of the A/O's witness statement, residents nursing notes, and the residents' statement.

Licensing reviewed camera footage from 11:05am-11:12am in the resident's hallway, 11:13am-11:39am in the cafeteria. Video of the hallway revealed that the resident was having what appeared to be a verbal argument with other residents when a peer slaps him in the face suddenly. The resident is taken to the back of the hallway by the A/O and can be seen speaking to the staff. The A/O then grabs the resident by the arm and directs him to the back of the lunch line beside him. The resident walks with his peers into the lunchroom where he immediately goes to the wall and sits on the floor refusing to eat. The A/O can be seen standing by the resident as he sits on the floor. The A/O can be seen placing his hand between the resident's head and the wall as it appears the resident was attempting to hit his head on the wall. at 11:30am the staff picks the resident up off the floor using a form of hug containment from behind the resident and takes him over to an empty cafeteria table. The staff continues this hold and per the A/O's own statement "that's when I start squeeze him to make sure he don't get up out his seat". SAMA instructor Cliff Williams stated that this should have been documented and reported as a restraint hold, but it was not by the staff. Additionally, a second staff member can be seen on video eating lunch at a table with other residents and not offering assistance during the hold. The A/O eventually let's go of the resident and goes to eat his lunch and the resident returns to sitting by the wall refusing to eat. When lunch is over, the A/O again returns to the resident, who is refusing to line up and picks the resident up off the ground and carries him back to the unit.

The resident later complained (16:40) that during lunch a staff member squeezed him causing marks on his chest. A nursing assessment was done and "multiple linear marks, petechial areas across chest" were noted.

The A/O was immediately placed on suspension pending investigation and subsequently terminated after video review. Licensing also requested that the other staff in the lunchroom at the time of the incident be retrained since she failed to intervene, assist, or call for nursing. This staff was on site today and training will be conducted immediately. The facility will provide licensing with the training documentation upon completion.

Due to the A/O's actions the following standards are being cited.

905.10 initiating a restraint when the child was not a danger to themselves, others, or property

905.4.g using physical injury as a form of behavior management

109.1.g engaging in behavior that could be viewed as dangerous with a resident.

Due to the other staff in the lunchroom [REDACTED] failing to intervene the following standard will be cited.

907.2 failing to provide the level of supervision and care necessary to ensure the safety and well-being of a resident.

Provider Comments:

CCL Staff Signature :

Date: 5/9/2024

Provider Signature :

Date: 5/9/2024